



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

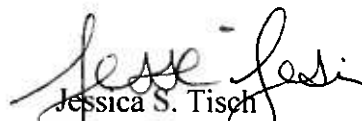
Re: Disciplinary Case No. 2024-30300 (PODS Case No. C-031158) against Sergeant Daniel Noonan, Tax No. 949401

Date: June 4, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Sergeant Noonan made offensive and discourteous remarks towards an individual, and failed to activate his body-worn camera. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Sergeant Noonan will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



Dr. MOHAMMAD KHALID
INTERIM CHAIR

October 9, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Sergeant Daniel Noonan
(Tax Reg #949401, CCRB #202300444)

Commissioner Tisch:

A negotiated settlement for Training was agreed upon and signed by all parties on September 23, 2025. Assistant Deputy Commissioner – Anne Stone, endorsed the negotiated settlement on October 9, 2025.

On November 15, 2022, at approximately 5 pm, [REDACTED] [REDACTED] and her fiancé [REDACTED] [REDACTED] were approached by Police Officers Christopher Keeley, Marisa Gonzalez, and Joseph Chirinos, and Sergeant Daniel Noonan, all of the 13th Precinct. Officer Keeley and Officer Gonzalez told Ms. [REDACTED] and Mr. [REDACTED] who were living out of Ms. [REDACTED] vehicle, parked on West 15th Street between 6th Avenue and 7th Avenue in Manhattan, that they needed to remove their vehicle from the area, or it would be towed. Officer Keeley said that if a tow truck came and they refused to leave their vehicle, the couple would be arrested.

Mr. [REDACTED] stated that an officer, who he described as a heavy-set white male in his 50's with short, peppery gray hair, asked Ms. [REDACTED] why she did not go down to the corner and hold up a sign for help. At the 07:00 minute mark of Officer Gonzalez's body worn camera ("BWC") from November 15, 2022, Sgt. Noonan walks across the street towards Officer Gonzalez and walks behind her out of frame. At 07:07, Officer Chirinos walks from across the street, and stops in front

of Officer Gonzalez, where he remains standing. At 09:25, Sgt. Noonan walks away from Officer Gonzalez, down the sidewalk, where Officer Chirinos joins him, a car length away from Mr. [REDACTED] sitting in his vehicle. At 10:15, Sgt. Noonan walks back towards the vehicle and goes behind Officer Gonzalez. Officer Chirinos paces up and down the sidewalk. At 12:50, Officer Keeley walks down the sidewalk while talking on the phone. He stands a car length away from Officer Chirinos. At 14:03, a voice says, "I'm sorry, you need gas? Is that what you need?" Mr. [REDACTED] and Ms. [REDACTED] both say yes. The voice replies, "So you have no money? So why don't you panhandle for some money to buy some gas." Ms. [REDACTED] replies that she does not panhandle, and Mr. [REDACTED] says he works. During this exchange, Officer Keeley is on the phone, two car lengths away from the interaction, and Officer Chirinos stands by the vehicle with his mouth closed.

Sergeant Noonan stated that he received a call from Officer Keeley requesting that he respond to the location for backup while he and Officer Gonzalez addressed the 311 complaints with Ms. [REDACTED] and Mr. [REDACTED]. Sgt. Noonan arrived at the location with Officer Chirinos and largely stayed in the background during this interaction. He did not recall personally speaking to either Ms. [REDACTED] or Mr. [REDACTED] nor did he believe that Officer Chirinos spoke to either of them. He recalled Mr. [REDACTED] saying the vehicle did not have any gas, or that there was something wrong with the engine. He remembered either Officer Gonzalez or Officer Keeley telling them to get a gas can and put gas in it. He did not remember panhandling being a topic of conversation during the incident. He could not determine the voice of the individual who told Ms. [REDACTED] and Mr. [REDACTED] to panhandle for gas and did not recognize the voice as his own. He could not say for sure that an officer made that comment, but apart from himself, Officer Gonzalez, Officer Chirinos, Officer Keeley, Ms. [REDACTED] and Mr. [REDACTED] nobody else was on scene. He noted that he does not generally speak to people this way.

Mr. [REDACTED] statement is mostly consistent with BWC, although the exact wording of the comment made by an officer is different. His description of the officer who made this comment most closely matches Sgt. Noonan, who was the oldest and most heavy-set officer on scene. BWC shows that a deeper, male voice made this comment. Officer Keeley is on the phone in the background, and Officer Chirinos stands silently while the comment is made. A preponderance of the evidence suggests Sgt. Noonan told Ms. [REDACTED] and Mr. [REDACTED] to panhandle for gas money.

Suggesting to a homeless couple that they panhandle for gas money to solve their problem fails to maintain the high standard of integrity expected of police officers outlined in Patrol Guide

procedure 200-02. It also violates New York City law Administrative Code Title 8 Chapter 1, which protects against antagonism towards individuals with perceived differences in their lawful source of income. The comment was thus both offensive and discourteous.

In addition, Sgt. Noonan failed to activate his BWC during this incident. Sgt. Noonan stated he did not activate his BWC because he forgot to, and he added that this was an oversight on his part. Patrol Guide procedure 212-123 states that it is mandatory for uniformed members of service to activate their BWC prior to engaging in any police action, which includes any self-initiated investigative or enforcement actions. Sgt. Noonan failed to activate his BWC when required to do so in violation of the guidelines.

NYPD disciplinary guidelines indicate that for Offensive Language, the mitigated penalty is the forfeiture of one (1) vacation day, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is termination.

The negotiated settlement deviates from NYPD disciplinary guidelines for the two charges of Offensive Language for the following reasons:

Sergeant Noonan has been a member of the service for 15 years. He has no prior Force, Abuse of Authority, Discourtesy, and Offensive Language discipline and has accepted responsibility in this matter. For these reasons, the CCRB deems it appropriate to deviate from the Matrix and recommends Training.

Respectfully submitted,

Andre D. Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board

Cc: John D'Alessandro